



File No.: EXP202302843

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
FACTS

FIRST: On January 25, 2023, two identical complaints were filed with the Spanish Agency for Data Protection against PAPERNEST INTERNATIONAL, S.L. with NIF B67185165 (hereinafter, the complained party). The reasons for the complaint are as follows:

Both complainants state that, after voluntarily terminating their employment relationship with the complained company, they had an interview where they expressed the reasons for their resignation to the HR manager, believing that the conversation would take place in absolute confidentiality, and subsequently received a message via WhatsApp from their superior expressing dissatisfaction with the opinions expressed. They provide a screenshot of the WhatsApp conversation dated August 30, 2022. On the other hand, they complain because the company continues to use their corporate email addresses, which contain their names (**EMAIL.1 and **EMAIL.2), despite having explicitly requested their termination. They provide a photograph showing the header of an email that contains their name, A.A.A., regarding the email address **EMAIL.1, which, as they state, is used by another person.

They provide a request for access, dated September 22, 2022, asking in particular to be informed whether the email address assigned to them by the company is still active and, if so, what use is being made of it and by whom.

They also expressly request to be informed of the name of the person who provided access to the content of the interview they had with the HR manager regarding their departure from the company. They provide the response from the complained company to their access requests, dated October 19, 2022, where they respond that they only retain the necessary data to complete the 2022 income tax declaration with the Tax Agency: name and surname, payroll for the year 2022, Social Security number, and their ID. They also indicate that they have deleted all information that they no longer need.

The response does not reference the corporate email address (**EMAIL.2).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on March 8, 2023, as stated in the certificate in the file.

No response has been received to this forwarding letter.

THIRD: On April 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy for processing

For this processing to be carried out lawfully, it must comply with the provisions of Article 6.1 of the GDPR, which states:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;

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3/4

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

III

Exercise of the right of access

The complaints refer, in the first place, to the lack of attention to the exercise of the requested right of access.

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible form, using clear and plain language.

According to Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

In the case analyzed here, the complainants, in the first place, requested access to their data, the purposes of the processing... They also asked whether the company email assigned to them was still active and, finally, to whom they had informed about the interview with HR.

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4/4

The response from the party being complained against includes what is stated in the referenced regulations. It does not refer to the use of the company email or the dissemination within the company of the interview with HR in which they explain the reason for their departure from the company. In this regard, it should be noted that there is no record of the use of the complainants' company email after leaving the complained company. Regarding the information provided by human resources to the supervisor of the complainants about the reason for leaving the company, the processing of the information occurs within the employment framework, informing the supervisor of the complainants about the reason for leaving the company, related to the very way of working of this supervisor. That is to say, the processing of such employment data is necessary to understand the reasons for the termination of the employment relationship of the complainants, being a legitimizing cause for that processing, as established by Article 6.1.b) of the GDPR. Confidentiality, to which the company and the individuals processing data (HR) are obliged, has not been lost since it has been used within the employment framework.

IV

Conclusion

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to PAPERNEST INTERNATIONAL, S.L., and to the complainant parties.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of the LPACAP, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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